

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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TAHLIB BANKS, TASHEEM BANKS, ANDRE CHEEVES,
DERRICK COLEY, NEAL GRIMES, JAMES NUMA,
DAQUAN SEABROOK, and KEVIN WALCOTT,

**STIPULATION AND
ORDER OF DISMISSAL**

Plaintiffs,

13-CV-1520 (JG) (MDG)

-against-

THE CITY OF NEW YORK, POLICE OFFICER DANIEL
BERARDI, shield #7962, POLICE OFFICER MICHAEL
FUNG, shield #3755, POLICE OFFICER MATTHEW
GERAMITA, shield # 31748, POLICE OFFICER JOHNNY
FUNG, shield #31739, POLICE OFFICER PASQUALE
DINUNNO, shield #19028, POLICE OFFICERS JANE/JOHN
DOE(S) #s 1-20,

Defendants.
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WHEREAS, the parties have reached a settlement agreement and now desire to
resolve the remaining issues raised in this litigation, without further proceedings and without
admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by
and between the undersigned, that

1. The above-referenced action is hereby dismissed with prejudice; and

2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

DAVID ZELMAN
Attorney for Plaintiffs
612 Eastern Parkway
Brooklyn, New York 11225

By:

David Zelman, Esq.

JEFFREY D. FRIEDLANDER
Acting Corporation Counsel of the
City of New York
Attorney for Defendants
100 Church Street, Rm. 3-208
New York, New York 10007

By:

Patrick Beath

Assistant Corporation Counsel

SO ORDERED:

Dated: New York, New York
3/4, 2014

HON. JOHN GLEESON
UNITED STATES DISTRICT JUDGE